



POLICE DEPARTMENT

November 10, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202404889 (Incident Date: May 14, 2024) regarding Police Officer Rene Duran,
Tax No. 948923 (PODS Case No. C-035275)

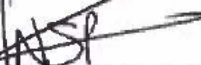
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Rene Duran and has determined that his actions do not warrant disciplinary action.

In this matter, Police Officer Duran arrived as a backup unit and observed the complainant acting in an agitated, non-compliant, and irate manner. After the complainant was eventually placed in handcuffs, Police Officer Duran attempted to escort the complainant to the police vehicle for transport to the precinct. Body worn camera footage shows the complainant continuing to resist and intentionally go limp and drop to the ground at the top of a staircase. Police Officer Duran and his partner carried the complainant down five steps for approximately four seconds. Police Officer Duran stated he was trying to balance himself and the complainant while going down the steps and prevent the complainant from injuring himself. After clearing the stairs, Police Officer Duran and his partner assisted the complainant to his feet.

After careful review of the available body worn camera footage and taking in to account the totality of the circumstances, it has been determined the actions of Police Officer Duran were reasonable and did not violate Department guidelines. Therefore, the Police Commissioner directs that Police Officer Duran receive no disciplinary action for the sole allegation.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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